# Brazoria County District Court

Cause No. 2026-CV-0013

Kathleen Garcia, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

## Oral Deposition of Kathleen Garcia

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| **Date:** | June 3, 2026 |
| **Location:** | Offices of Gardner & Morris Law Group |
| **Examining attorney:** | Stephanie Williams, Ashford & Lyle LLP |
| **Defending attorney:** | Sergio Acosta, Gardner & Morris Law Group |

Q: Please state your full name for the record.

A: I'd rather not put my full name on the transcript today, if that's all right. You can use the case caption.

Q: That's fine for now. Where were you on the day of the collision?

A: I was driving home from work on a weekday evening. I was stopped at a red light on the main road in Baytown, waiting to turn.

Q: Tell me what happened next.

A: I was sitting still with my foot on the brake when I felt a hard jolt from behind. My head snapped forward and back, and my car got pushed into the intersection. The other driver's front bumper was crushed into my rear.

Q: Did you have your hands on the wheel at the time?

A: Yes, both hands. I remember my right hand was on the wheel and my left hand was on the gear shift. When the impact hit, my right arm was thrown against the door frame.

Q: Did you get out of the vehicle?

A: I got out after a few minutes. My wrist was already swelling and hurting badly, and I could barely grip anything.

Q: What treatment did you receive for your wrist?

A: I went to the emergency room that night. They took X-rays and told me the wrist was broken. I was put in a splint and given instructions to see an orthopedic doctor. A few days later I had a follow-up appointment, and the doctor said I would need a cast for several weeks.

Q: Have you had any further treatment since then?

A: Yes. I went to physical therapy twice a week for a while. The therapist had me doing exercises to rebuild grip strength and range of motion. Some days were better than others.

Q: How has the injury affected your daily life?

A: It's made ordinary things hard. Cooking, opening jars, and buttoinng my shirt were difficult for a long time. I'm right-handed, so I had to learn to do almost everything with my left hand. I also had to stop my weekend yard work and my volunteer shifts for a while.

Q: Are you still experiencing symptoms today?

A: Yes, I still notice stiffness in the mornings, and when the weather turns cold, the wrist aches. I can lift things, but I avoid heavy loads because I worry about pushing too hard.

Q: Have you returned to your regular work duties?

A: I went back on modified duty first, then eventually to full duty. I'm working now, but I was out for a period and my hours were reduced during recovery.